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File No.: EXP202314548 (AI/00323/2024)

RESOLUTION FOR FILING OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 17, 2023, a complaint was filed with entry registration number REGAGE23(...) before the Spanish Agency for Data Protection against SEUR GEOPOST, S.L. with NIF B82516600 (hereinafter, SEUR GEOPOST). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose shipping was managed by the respondent, who informed them of its delivery on September 16, 2023, although it was not delivered to the complainant or anyone they authorized, being recorded as delivered to someone named A.A.A., of whom the complainant has no knowledge, and therefore considers that their data has been exposed to third parties without their consent.

Along with the complaint, a copy of communications sent by the respondent to the complainant is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to SEUR GEOPOST for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 20, 2023, as evidenced by the acknowledgment of receipt in the file.

On November 17, 2023, a response was received by this Agency indicating that:

"FIRST.- The decision made regarding this complaint and the report on the causes that led to the incident that originated the complaint.

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After receiving this information request, SEUR has proceeded to investigate the events that occurred and has verified the following:

- That a SEUR delivery person went to the complainant's home to make a delivery.
 - That the complainant was absent at the time of delivery.
 - That, consequently, the delivery person delivered the complainant's package to the neighbor (...)
- Thus, after analyzing the facts, we consider that the incident occurred as a result of an error by the delivery person, for not having followed SEUR's internal protocols for the correct delivery and collection of goods.

In this regard, SEUR informs the AEPD that, in compliance with the obligations of the applicable regulations for its transport activity, it has implemented the corresponding procedures and corporate manuals, which outline the guidelines to follow for the correct delivery or collection of goods.

Specifically, SEUR has a manual with the operational procedures that delivery persons must follow, called the "Delivery Person Operational Manual," a document that is provided to them at the time of hiring or the start of service provision with SEUR. According to this manual, when a recipient is absent from home, the delivery person will notify the absence in the PDA, automatically triggering a call to the recipient to agree on a new delivery method, among which is the authorized delivery to a third party. Annex I includes screenshots from the manual specifying the obligations of delivery persons for the correct delivery or collection of goods.

Therefore, through that call, the recipient is given the opportunity to authorize the delivery person to leave the goods with third parties such as a neighbor, the concierge, etc. If the recipient authorizes

this, the delivery person will mark this option in the PDA by pressing the “Authorized delivery at another address” button. All this operational procedure is part of the training provided to delivery persons to comply with SEUR's internal protocols. Annex II includes an excerpt from the training in this regard.

Additionally, SEUR provides delivery persons with other periodic training on the importance of properly handling and diligently treating the personal data they manage daily from senders, recipients, and/or authorized persons. Specifically, one of the latest training actions consisted of disseminating a video titled “Best Practices in Privacy.”

Likewise, as part of these periodic trainings, an instructional video titled “Delivery Procedure: Absent Customer” has been developed to reinforce awareness of the protocol to follow in these cases. Annex III includes an excerpt from this training.

For all these reasons, as previously mentioned, we confirm that the incident occurred due to a specific malpractice by the delivery person for not following the company's internal protocols, and therefore, following a practice not authorized by SEUR.

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SECOND.- Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

As described in the previous section, SEUR has implemented adequate measures in the various delivery procedures and manuals to prevent the reported events from happening again. Additionally, periodic training is conducted to raise awareness among delivery personnel about these practices, with the aim of respecting the data protection rights of the recipients of goods transported by SEUR.

However, as a consequence of the incident that occurred, SEUR has reiterated to all delivery personnel the need to comply with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new delivery method and, if applicable, to request authorization for delivery to third parties. Furthermore, training included in Annex III has been planned for all delivery personnel to reinforce awareness of the protocols to be followed.

Finally, we want to reiterate our commitment to ensuring the security and confidentiality of the data we manage daily, as well as to comply in a timely manner with the provision of the transportation service contracted by our clients.”

THIRD: On November 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Moreover, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

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II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that there is a processing of personal data, since SEUR GEOPOST carries out, among other processes, the retention and use of the following personal data of individuals, such as: name, surname, and address of its clients.

SEUR GEOPOST carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter personal data breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

III

Adoption of Measures for Compliance with Regulations

SEUR GEOPOST states in the document submitted to the AEPD on November 17, 2023, that “...it has implemented adequate measures in the various delivery procedures and manuals to prevent the reported events from happening again. Additionally, periodic training is conducted to raise awareness among delivery personnel about these practices, with the aim of respecting the data protection rights of the recipients of goods transported by SEUR.

However, as a consequence of the incident that occurred, SEUR has reiterated to all delivery personnel the need to comply with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new delivery method and, if applicable, to request authorization for delivery to third parties. Furthermore, training included in Annex III has been planned for all delivery personnel to reinforce awareness of the protocols to be followed.

...”.

In Annex III of the documentation provided by SEUR GEOPOST, it is verified that, in the training provided to its staff, the delivery methods to the client are included, along with a reminder to obtain client consent for delivery to a different address, including the following message: “Without prior authorization from the client, it is NOT permitted to deliver to a nearby store (if it is not a pickup), to a neighbor, or even to the doorman.”

Consequently, it is evident that SEUR GEOPOST has adopted additional measures subsequent to the submission of the complaint; therefore, the application of Article 65.6 LOPDGDD is warranted, which expressly states that:

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“(...) 6. After the admission for processing, if the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate solutions or alternatives to corrective action, provided that no prior investigative actions or any of the procedures regulated by this organic law have been initiated (...)”.

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, and given that according to Article 65.6 of the LOPDGDD, circumstances exist that advise the adoption of alternative solutions to corrective action, the archiving of the complaint is appropriate.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, it is AGREED by the Director of the Spanish Agency for Data Protection:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to SEUR GEOPOST, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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